

#	Case Name	Tentative
57.	Murray v. Priority Plus Financial LLC 2025-01453046	Plaintiffs Mayah Murray, Daniel Almance, Tanya Barbosa, Mariel Bolton, Anthony Durbin, Patrick Kaltenbach, Jonathan Ramlow, Brennan Ramos, Phil Ramos, Sylvain Reyes, Zachary Williams, Cathleen Camunas, Steven Crawford, Tara Erickson, Nathaniel Grande, Erik Margerum, Brandon Mendizabal, Nicole Portwood, Derek Price, Michael Priest, Rick Riggan, Michelle Schulman, Allison Taylor, Chantel Boses, Jess Daly, Ryan Maniaci, and Kori Prather’s (collectively, plaintiffs) motion to enforce settlement is GRANTED, as follows. (See Code Civ. Proc., § 664.6.) The court ORDERS the entry of judgment pursuant to the terms of the subject settlement agreement in the total amount of \$663,020.35 in favor of plaintiffs, and jointly and severally against defendants Priority Plus Financial LLC, Brandon Avila, Todd Avila, individually and as Trustee of Cashcow Holdings Trust, Christopher Schlegel, and Horned Frogs LLC (collectively, defendants). (See Janzen Decl. at Ex. A [subject settlement agreement].) The settlement agreement requires defendants to pay a total settlement sum of \$3.1 million to plaintiffs over four payments as specified in the agreement, and it is undisputed that \$663,020.35 of this sum remains unpaid and due. (Janzen Decl. at Ex. A [settlement § 1.2(1)]; see <i>id.</i> ¶¶ 6, 10, 22 [first, second, and fourth payments have been made]; see also Williams Decl. ¶ 10, Ex. B [attempting to negotiate extension of deadline for third payment]; Opp. at pp. 2:3-4, 2:13-16, 5:11-6:11 [only \$20,697.65 of the third payment of \$683,718 has been made]; see also Reply at p. 2:3-5 [acknowledging defendants’ payment of \$20,697.65].) A party moving for the entry of judgment pursuant to a settlement under Code of Civil Procedure section 664.6 need not establish a breach of contract to support relief under the statute; the court may enter judgment pursuant to the settlement agreement regardless of whether a party has breached its terms or not. (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1184-1185; see <i>Machado v. Myers</i> (2019) 39 Cal.App.5th 779, 796 [whether a party is in breach is “not relevant to the entry of judgment pursuant to section 664.6”].) Plaintiffs’ request for prejudgment interest pursuant to Civil Code section 3289 is DENIED. “Prejudgment interest is not a cost, but an element of damages.” (<i>BTHHM Berkeley, LLC v. Johnston</i> (2024) 100 Cal.App.5th 1220, 1225; <i>North Oakland Medical Clinic v. Rogers</i> (1998) 65 Cal.App.4th 824, 830 [“It is well established that prejudgment interest is not a cost, but

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		an element of damages.”].) Here, the parties have settled this consolidated action for \$3.1 million (plus attorney fees as costs to the prevailing party on a motion to enforce the settlement). A judgment entered pursuant to section 664.6 is a judgment on plaintiffs’ claims in this action pursuant to terms of the settlement; it is not a judgment for breach of the settlement agreement and does not require a finding that a breach even occurred. Thus, without a provision in the settlement agreement providing for such prejudgment interest/damages, no such interest is warranted. (See <i>Greentree Financial Group, Inc. v. Execute Sports, Inc.</i> (2008) 163 Cal.App.4th 495, 502 [reversing award of prejudgment interest not provided for in section 664.6 agreement]; see also <i>BTHHM Berkeley, supra</i>, at pp. 1225-1226.) Attorney fees in the total amount of \$10,977.50 are GRANTED in favor of plaintiffs and against defendants, pursuant to sections 6.0 and 13.0 of the settlement agreement. (See Janzen Decl. at Ex. A [settlement §§ 6.0, 13.0, fee provisions].) The court has awarded all the hours requested, but the hourly rates claimed by plaintiffs’ counsel and his staff are not reasonable. Specifically, plaintiffs have requested hourly rates of \$150 for an unidentified “law clerk” with unknown experience, \$225 for paralegal Jessica Bacho with unknown experience, and \$1,000 for attorneys Sean Janzen, Christopher Engels, and Sarah O’Brien. (Janzen Decl. ¶¶ 33-39, Ex. J.) These rates are unreasonably high and have been reduced by half to reflect the reasonable rates for attorneys/staff of their experience, expertise, and skill shown. (See <i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41 [“the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases’ ”].) The OSC re: preliminary injunction is ORDERED discharged. Plaintiffs shall give notice of all of the above.
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